

25STCV22375 25STCV22375

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C729%2C07%2F15%2F2026

Source SHA-256: cd4d6fec7e12a6c5363242b6db628c4c8cf8bf841b3d4795328ce54931579763

Case Number: 25STCV22375 Hearing Date: July 15, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

SAHIBZADA AASIN AKHTAR,

vs.

SIERRA CANYON SCHOOL.

Case No.:

25STCV22375

Hearing Date: July 15, 2026

Pro Per Plaintiff Sahibzada Aasin

Akhtar's motion to vacate this Court's December 3, 2025, ruling that Plaintiff is a vexatious litigant is denied.

Plaintiff

Sahibzada Aasin Akhtar ("Akhtar") ("Plaintiff") moves in pro per for

this Court to vacate its ruling on December 3, 2025, declaring Plaintiff a vexatious litigant on the basis that the ruling is void because the ruling was entered without adequate notice or a meaningful opportunity to be heard. (Notice of Motion, pgs. 1-3; C.C.P. §§391.7, 391.8, 473(d).)

Background

On December

3, 2025, this Court heard argument on Defendant's Motion to Declare Plaintiff a Vexatious Litigant and took the matter under submission. On the same day, this Court granted Defendant's Motion to declare Plaintiff a Vexatious Litigant under C.C.P. §391(b)(2) ("12/3/25 Ruling"). (12/3/25 Ruling on Submitted Matter.) The Court also granted Defendant's request that this Court enter a prefiling order that requires Plaintiff to seek leave of the presiding judge before filing any new litigation in pro per, but denied, without prejudice, Defendant's request that Plaintiff be required to furnish a security. (12/3/25 Ruling on Submitted Matter.)

On

March 23, 2026, this Court heard Defendant's motion to require Plaintiff to furnish a security in the amount of \$19,319.39, due within 30 days of the ruling. (3/23/26 Ruling.)

Plaintiff

filed the instant motion for reconsideration on April 21, 2026. Defendant filed its opposition on April 24, 2026. As of the date of this hearing no reply has been filed.

Legal

Standard

"The

court may, upon any terms as may be just, relieve a party . . . from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . No affidavit or declaration of merits shall be

required of the moving party.” (C.C.P. §473(b).)

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (C.C.P. §473(d).)

Discussion

Plaintiff's motion is denied.

As

a preliminary matter, Plaintiff's motion pursuant to C.C.P. §473(b) fails to attach “a copy of the answer or other pleading proposed to be filed therein,” namely, an opposition to Defendant's motion to declare Plaintiff a vexatious litigant. (See C.C.P. §473(b).)

Plaintiff's

declaration attached to his motion is not credible. Plaintiff declares that he “never received Defendant Sierra Canyon School's earlier motion seeking to have [him] declared a vexatious litigant and subjected to a prefiling order.” (Decl. of Akhtar ¶13.) Plaintiff also declares that he “never received notice of any hearing on that motion set for December 3, 2025.” (Decl. of Akhtar ¶14.) Plaintiff's contact information on his motion states that his mailing address is “19300 Rinaldi St. #7790, Northridge, CA 91327,” and his email address is “.”

“It

has been held that the filing of a proof of service creates a rebuttable presumption that the service was proper.

(Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441, as modified on denial of reh'g (May 26, 1994), citing M. Lowenstein & Sons, Inc. v. Superior Court (1978) 80 Cal.App.3d 762, 770.) “However, that presumption arises only if the proof of service complies with the statutory requirements regarding such proofs. Section 417.20 requires that ‘if service is made by mail pursuant to Section 415.40, proof of service shall include evidence satisfactory to the court establishing actual delivery to the person to be served . . .’ (§ 417.20, subd. (a).) To do so, it must show that the summons was mailed to a

person or persons who may be served, and 'the name, title or representative capacity, if any, . . . of such person or persons . . . ' (Judicial Council Report, comment to section 417.20, p. 59.)" (Id. at pg. 1442)

Here,

the proof of service attached to Defendant's motion for prefiling order, filed with this Court on September 19, 2025, was both mailed and emailed to Plaintiff at these same addresses. (See 9/19/25 Notice of Motion Prefiling Order POS.)

The proof of service is rebuttably presumed to be proper service, and Plaintiff's declaration attached to the instant motion does not provide evidence sufficient to rebut the presumption that Defendant's methods of service were proper. Further,

Defendant's opposition includes the declaration of Gabriela Aluotto ("Aluotto"), Defendant's counsel's legal assistant who completed the challenged Proof of Service. Aluotto declares:

On September 19, 2025, I mailed a copy of the motion and related documentation addressed to: Sahibzada Aasim Akhtar, 19300 Rinaldi St., Suite 7790 Northridge, CA 91327. I attached a copy of my proof of service and then I personally placed the documents in an envelope and then put the envelope in a receptacle for all of the mailings that are to be sent out by the law firm via US mail each and every day. I have been a secretary for Mr. Freed's office since August of 2016 and have never known of a single business day where the mail in the mailing receptacle was not properly postage stamped and mailed the same day indicated on the proof of service. Any mail sent out from Mr. Freed's office that was returned by the Post Office for any reason would be given back to the person who served the document in the mailing to determine why there was any issue with the mailing. My mail to Mr. Akhtar was never returned by the Post Office.

The Court will also note that my proof of service in connection with the motion states under penalty of perjury that on September 19, 2025, I emailed a copy of the motion and related materials to "." I never received a "bounce back" or any other indication that the email did not go through and was not received by Mr. Akhtar. A true and correct copy of my email is attached hereto as Exhibit "1".

(Decl. of Aluotto

¶¶2-3.)

Plaintiff's bare declaration that he did not receive a copy of Defendant's motion for prefiling order, filed with this Court on September 19, 2025, does not rebut Defendant's presumption of proper service. Defendant also emailed Plaintiff a courtesy copy of the motion by email, which Plaintiff does not address in his declaration.

Accordingly, Plaintiff's motion is denied.

Conclusion

Plaintiff's motion is denied.

Moving Party to give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court